

23SMCV00558 23SMCV00558

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Case Number: 23SMCV00558 Hearing Date: September 17, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ANDO HACOPIAN,

Plaintiff,

v.

27715 LLC, et al.,

Defendants.

Case No.: 23SMCV00558

Hearing Date: September 18, 2026

[TENTATIVE] order RE:

Cross-defendants' motion to set

aside default and quash service

of summons

BACKGROUND

This case concerns equitable ownership of real property commonly known as 27715 Pacific Coast Highway, Malibu, CA 90265 ("the Property"). Plaintiff Ando Hacopian's company, Hacopian Design & Development Group, LLC ("Hacopian LLC") owned the Property. Hacopian LLC's business was to buy properties, and to remodel or construct homes on the properties for purposes of resale.

Plaintiff acquired two loans from Defendant VIG Private Lending, Inc. and the Val Serbryany Family Trust, one to help purchase the property (\$2 million) and another for construction costs (\$3 million) including an interest reserve loan to help pay for the interest payments during the construction period when Plaintiff may not have sufficient cash flow.

Plaintiff defaulted on the payments to VIG as well as other lender(s), and as a result, the Property was sold in a non-judicial foreclosure. Title to the Property was conveyed to 27715 LLC. VIG is the controlling member of 27715 LLC. Vladimir Valsky is the manager of 27715 LLC.

Plaintiff sued VIG, 27715 LLC, and VIG's member (Vladimir Valsky) claiming that they had falsely promised Plaintiff that 27715 LLC "would sell and transfer all membership interests in Plaintiff for payment of \$4,800,000." The complaint alleged claims for promissory fraud, specific performance and breach of contract.

Defendants then countersued Plaintiff and his company, Hacopian LLC for breach of written guaranty, fraud, mortgage fraud, negligence and restitution. Defendants' suit also named other defendants, including (as relevant here) Edmond Aslan, Aslan Construction, Inc. (collectively "Aslan" or the "Aslan Cross-Defendants"). All of the claims have been settled except for those between Cross-Complainants and Aslan.

As to Aslan, it was hired to do the construction on the Property. After the foreclosure sale and upon Cross-Complainants' possession of the Property, Cross-Complainants claim they discovered many problems with the construction, including that: (1) many of the construction items which had been represented by Aslan as completed at the Property were not done; (2) other construction items had been completed without proper completion of inspections by the City of Malibu, leading to the need to tear out much of the construction to allow inspection; (3) the work performed by Aslan on the Property was negligently performed; (4) much of the material supplied for the construction at the Property was substandard; (5) the amount disbursed from the Construction Loan to Aslan were far in excess of what it would have cost for the scope and quality of work and materials that were actually used and completed at the Property.

Cross-Complainants filed proofs of service indicating that the Aslan Cross-Defendants had been substitute served on Saturday, March 2, 2026 at 4:05 p.m. The proofs included a very detailed declaration from the registered process server, William Sera. Mr. Sera explained that he obtained the service address (22922 Calvert Street, Woodland Hills, California) by looking at the "Statement of Information" for Aslan Construction, Inc. filed with the California Secretary of State on 3/21/2023, which identified Edmond Aslan as the corporation's registered agent for service of process at 22922 Calvert St., Woodland Hills, CA 91367 address.

Mr. Sera also obtained a "Contractor's License Detail" for license 934798 for Aslan Construction, Inc. from the "Check a License" page on the California Contractors State License Board website, which lists Aslan Construction, Inc.'s address as 22922 Calvert St., Woodland Hills, CA) and identifies "Edmond Evan Aslan" as the sole owner of Aslan Construction, Inc.

Mr. Sera then obtained a copy of a Grant Deed recorded on June 19, 2019 in the official records of the County of Los Angeles, Document No. 20190582660 which transfers title in the property at 22922 Calvert St., Woodland Hills, CA 91367 from "Edmond Aslan and Eileen Michaelian, husband and wife as community property with right of survivorship" to "Edmond Aslan and Eileen Michaelian, Trustees of The Aslan Family Trust dated June 11, 2019".

On March 1, 2024, Mr. Sera also conducted a SKIP Trace which revealed that Edmond Aslan was the owner of Aslan Construction, Inc. and that the business uses the same address as Mr. Aslan's home (22922 Calvert St.).

Based on his research, Mr. Sera attempted personal service at the address on four different dates and times: October 25 at 3:35 p.m., October 28 at 4:45 p.m., February 27 at 7:12 p.m. and February 28 at 7:12 p.m. The house was behind a fenced gate so Mr. Sera was not able to enter and knock on the door. On one of the attempts (October 28), Mr. Sera was able to speak with the occupants over the intercom who stated that both properties are rentals, and this was not a good address for Aslan Construction or Mr. Aslan. They also stated that the Aslan Cross-Defendants may have done construction work on both houses, but that they did not live there. They also stated that Michealian and Gore are the last names of the occupants of this property. Michaelin is the last name of Aslan's wife, as reflected in the grant deed.

After four unsuccessful attempts at personal service, Mr. Sera then did a stakeout of the home on Saturday, March 2, 2024. He parked down the street from the residence, and after a while, he observed a Black Tesla drive out of the driveway. He followed the Tesla and waited for a young man to exit the car. The young male identified himself as the son of Edmond Aslan. Mr. Sera explained to the young Aslan, that Mr. Sera had made multiple attempts to serve his father. Mr. Sera served the young man with two packages, one for Edmond Aslan and the second for Aslan Construction, Inc. Mr. Sera described the young man as "Male, Armenian, 22-25 years, Black hair, Brown eyes, 5'9 ", 175 lbs." Mr. Sera then sent two separate mailings via USPS Priority Mail. Mr. Sera signed his declaration under penalty of perjury.

Aslan did not respond within the deadline to respond to the Complaint. Accordingly, on Cross-Complainants' request, the Clerk of the Court entered default against the Aslan Cross-Defendants on January 21, 2026. On May 8, 2026, without obtaining an order to vacate default, the Aslan Cross-Defendants filed an answer.

This hearing is on the Aslan Cross-Defendants' motions to vacate default and to quash service of process. They move to set aside the default pursuant to Code Civ. Proc. Section 473(b), 473(d), and 473.5 because the summons and cross-complaint were allegedly not validly served on them and they did not receive actual notice of the lawsuit until after default had already been entered.

In support of their motion, the Aslan Cross-Defendants submit three declarations. The first declaration is from Edmond Aslan who attests that he moved out of the 22922 Calvert Street address in 2022; he has lived in Huntington Beach since January 2025; prior to that, he lived in Big Bear from 2022 until January 2025, and he did not learn about the lawsuit until his tenant received a request for default from the court and gave it to him in April 2026.

The second declaration is from Alexander Aslanian who says he has never received any documents relating to the lawsuit; he drives a Jeep Wrangler, not a Tesla; he does not go to the gym on Saturdays, and he is 6 foot tall, has brown hair, hazel eyes, and is approximately 210 pounds which differs from the process server's description of a young male, 5'9", 175 lbs, black hair and brown eyes.

The third declaration is from Sergey Gorelyshev, who attests he is a tenant currently residing in 22922 Calvert Street. He says he has not received any mail addressed to Edmond Aslan or Aslan Construction, Inc., other than the package he gave to Mr. Aslan in April 2026.

The Aslan Cross-Defendants also submit several pieces of evidence including: (1) three 2025 and 2026 electricity bills from Southern California Edison indicating an address of 309 6th Street, Huntington Beach, California for Eileen Michaelian; (2) four 2025 and 2026 mortgage statements sent to Edmond Aslan at his Huntington Beach address; (3) an October/November/December 2022 and January/April/September 2023, January/May/September/December 2024 electric service bills sent to Edmond Aslan in Big Bear Lake.

LEGAL STANDARD

Section 473(b)

Code of Civil Procedure, section 473, subdivision (b) provides for two distinct types of relief—commonly differentiated as “discretionary” and “mandatory”—from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.)

The discretionary portion of section 473, subdivision (b) provides: “The court may, upon terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

The mandatory portion of section 473 requires the court to, “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).)

Section 473(d)

Code Civ. Proc. § 473(d) provides that “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

A defendant may move to set aside a default and default judgment based on improper service and lack of personal jurisdiction under Code Civ. Proc. § 473(d). (*Strathvale Holdings v. E.B.H.* (2005) 126 Cal.App.4th 1241, 1250.) A “default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. Under § 473(d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service.” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

Where service is challenged, the burden is on the plaintiff to prove the facts requisite to an effective service. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.)

Section 473.5

Code Civ. Proc. § 473.5(a) provides: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”

A notice of motion to set aside a default under section 473.5 “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” (Code Civ. Proc. § 473.5(b).)

“‘[A]ctual notice’ in section 473.5 ‘means genuine knowledge of the party litigant....’ [Citations.] ‘[A]ctual knowledge’ has been strictly construed, with the aim of implementing the policy of liberally granting relief so that cases may be resolved on their merits.’ [Citation.]” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 547.)

“It is the policy of the law to favor, wherever possible, a hearing on the merits, and appellate courts are much more disposed to affirm an order where the result is to compel a trial upon the merits than they are when the judgment by default is allowed to stand and it appears that a substantial defense could be made. Stated another way, the policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (Weitz v. Yankosky (1966) 63 Cal.2d 849, 854-855.)

DISCUSSION

Section 473(b)

The Aslan Cross-Defendants seek to vacate default pursuant to section 473(b). Section 473(b) provides both mandatory and discretionary relief.

To obtain mandatory relief, a party must submit “an attorney’s sworn affidavit attesting

to his or her mistake, inadvertence, surprise, or neglect.” The Aslan Cross-Defendants have not submitted any attorney affidavit.

To obtain discretionary relief, the motion to vacate “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Here, default was entered on March 24, 2025. The Aslan Cross-Defendants filed their motions to set aside default on July 14, 2026, which is more than six months after default was entered.

Accordingly, the Aslan Cross-Defendants’ motion to set aside default under section 473(b) is denied.

Section 473(d)

The Aslan Cross-Defendants argue that they were not properly served. The Court disagrees.

A proof of service completed by a registered process server creates a rebuttable presumption under Evidence Code § 647 that service was accomplished in the manner stated. (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th at 383, 390.) Here, the process server’s declaration was extremely detailed and thorough.

The Court also notes that based on publicly available government records, the most current Statement of Information of Aslan Construction Inc. (filed with the Secretary of State), states that its agent of service for process is Edmond Aslan, and he lives at the service address, 22922 Calvert Street. This is significant because a corporation is required to file statement of information with the Secretary of State and ensure that any change in information is reported to the State, particularly as it relates to the agent for service of process. (Cal. Corp. Code § 1502.) To do business in California, a company is required to have an agent for service of process who must have a physical California street address and be available during normal business hours to receive legal documents on the corporation’s behalf. (Cal. Corp. Code § 17701.1.) Given the statement of information, the Court concludes that the service address was the proper address to serve the Aslan Cross-Defendants.

As to the issue of whether substitute service was proper, the Court finds that Cross-Complainants more than met the reasonable diligence requirement for attempting personal service. The process server here attempted four times to serve the Aslan Defendants on varying dates, days of the week, and times of the day. The Court also finds more credible the process server's description of his interaction with Mr. Aslan's son, and his leaving the documents with the son. There is no reason for the process server to lie in this case.

As set forth above, the Aslan Cross-Defendants submit several pieces of evidence including electricity bills and mortgage statements. The electricity bills and mortgage statements from 2025 to 2026 (which reflect that Mr. Aslan and his wife own a home at 309 6th Street, Huntington Beach, California) are entirely irrelevant because service was done in 2024. As to the 2023 and 2024 electric service bills sent to Mr. Aslan in Big Bear Lake, they again do not show that Mr. Aslan's permanent residence was not at 22922 Calvert Street, as this is still the address associated with him in the most current Statement of Information for his company.

Accordingly, the Aslan Cross-Defendants' motion to set aside default under section 473(d) also fails.

Section 473.5

The Aslan Defendants also seek relief from default under section 473.5. Section 473.5 provides relief from default or default judgment to those defendants who, despite proper service, never received "actual notice" of the lawsuit in time to defend against it. (See § 473.5, subd. (a).) To get such relief, the defaulted defendant must submit an affidavit showing the lack of actual notice was not due to its avoidance of service or inexcusable neglect. (Id., subd. (b).)

There is also a time limitation on such a motion. It must be served and filed "within a reasonable time" but before the earlier of: (1) 180 days after service of written notice of the default or default judgment on the defendant or (2) two years after entry of the default judgment. (Id., subd. (a).) The trial court may set aside the default or default judgment if it finds the moving defendant has met the timeliness requirement and has shown the lack of actual notice was not due to avoidance of service or inexcusable neglect. (Id., subd. (c).)

Here, the Aslan Defendants' affidavits do not meet the requirements of section 473.5. Mr. Aslan attests that he did not find out about the lawsuit until April of 2026. But he doesn't provide a sufficient excuse (or any excuse) for why he waited until July 14, 2026 to file the motion to vacate default and default judgment. Also, his declaration does not attest that the lack of actual notice was not due to avoidance of service or inexcusable neglect. Accordingly, the Court also concludes that the Aslan Defendants cannot vacate default under section 473.5.

Motion to Quash

Because the Court has denied the motion to vacate default/default judgment, the Aslan Cross-Defendants' motion to quash service is also denied. A defendant cannot file any motions while a default is in place. "The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered." (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385.)

CONCLUSION

For the foregoing reasons, the Court DENIES Defendants' motions to set aside default/default judgment and to quash service of summons.

DATED: September 18, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court